



Australian Government

Australian Financial Security Authority

Bankruptcy Act 1966: Section 54C

07 March 2023

Richard William Mclean
2 McCubbin St,
FOOTSCRAY VIC 3011

Reference: VIC 197/23/1

**NOTICE: YOUR APPLICATION FOR TEMPORARY DEBT PROTECTION HAS
BEEN ACCEPTED**

I refer to your application for temporary debt protection lodged on 06 March 2023 and dated 06 March 2023.

Your application was accepted by the Official Receiver on 07 March 2023. You have therefore made a declaration of an intention to present a debtor's petition under s54C of the *Bankruptcy Act 1966*.

Please find attached the following documents:

1. A copy of your declaration, and
2. A copy of the notice of acceptance given to each of the creditors listed in your form.

You are encouraged to contact your creditors to try to negotiate a settlement and/or a repayment agreement during this period. If no agreement can be reached you may have no choice but to apply for bankruptcy.

For more information see the AFSA website: www.afsa.gov.au

Regards

Service Officer | AFSA Service Centre | Australian Financial Security Authority
T 1300 364 785 | E registry@afsa.gov.au | W www.afsa.gov.au



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TEMPORARY DEBT PROTECTION

NOTICE OF DECLARATION OF INTENTION TO PRESENT A DEBTOR'S PETITION SUSPENSION OF CREDITOR ENFORCEMENT

Administration Number	VIC 197/23/1
Debtor's Name	Richard William MCLEAN
Date of Birth	08 April 1973
Disclosed Aliases	
Associated Entities	www.richmclean.com.au

The debtor named above is in financial difficulty. They applied for temporary debt protection and it was accepted by the Official Receiver. The debtor has therefore made a declaration of an intention to present a debtor's petition under the *Bankruptcy Act 1966*. A summary of the financial affairs disclosed by the debtor is attached. The debtor named you as a creditor.

THIS MEANS THAT from 12:01 AM on 07 March 2023 to midnight on 28 March 2023:

- As an unsecured creditor of the debtor, you **cannot** seize their goods, garnish their wages or apply for any enforcement action against them.
- A sheriff, registrar or other court officer **cannot** start or continue any steps to execute or sell the debtor's property, or pay out the proceeds of an enforcement process.
- A person making deductions under a garnishee order or statutory notice cannot retain or deduct any more money. They cannot pay any money that was retained or deducted before this declaration was accepted to anyone except the debtor.

This period allows the debtor to consider their options to manage their debt.

Debtors and creditors are encouraged to try to negotiate a settlement and/or repayment agreement during this period. If no agreement can be reached, the debtor may have no choice but to apply for bankruptcy.

This does not change the rights of secured creditors (e.g. a mortgagee) to recover money owed to them. Enforcement action can also continue for certain types of debts (e.g. maintenance agreements, court imposed fines). Legal action by creditors (other than enforcement proceedings) may also continue during the period.

For more information see the AFSA website: www.afsa.gov.au



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The debtor has nominated the following person to act on their behalf during this period:

john boyle, Solicitor
Email at jboyle@mdlaw.com.au

Please find attached a copy of the Temporary Debt Protection.

Regards

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